



Maritime &
Coastguard
Agency

Guidance

MSN 1895 (M) The Red Ensign Group (REG) Yacht Code Part A

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Summary

- The Red Ensign Group (REG) Yacht Code was launched in November 2017, and supersedes “The Large Commercial Yacht Code 3” and the “Passenger Yacht Code edition 6”.
- The REG Yacht Code, Part A applies to yachts constructed on or after 1 January 2019, that are over 24m in length, operate commercially and carry no more than 12 passengers.
- Such vessels certificated to the REG Yacht Code, Part A, are deemed to satisfy applicable international standards.

1. Introduction

1.1 The Red Ensign Group (REG) Yacht Code was developed during 2016 and 2017, as a partnership between members of the REG^[footnote 1], including the UK Maritime and Coastguard Agency (MCA), and international representatives of the large yacht industry through a series of working groups. Following a stakeholder engagement exercise the Code was published in November 2017, and supersedes The Large Commercial Yacht Code 3 (LY3). The code was further updated and a new version published in January 2024.

1.2 The REG Yacht Code prescribes standards of safety and pollution prevention which are appropriate to the size and type of yacht. The standards applied are either set by the relevant International Conventions or by equivalent standards where it is not reasonable or practicable for yachts to comply.

1.3 This MSN concerns only Part A of the REG Code, which covers yachts of 24 metres and over in load line length, or, if built before 21 July 1968, are of 150GT or over, and do not carry more than 12 passengers.

1.4 Yachts which carry more than 12 passengers are not covered by this MSN. The relevant standards for such vessels are set out in Part B of the REG Yacht Code.

2. Application

2.1 Part A of the REG Yacht Code applies to motor or sailing vessels of 24 metres in load line length and over:-

2.1.1 the keels of which were laid or were at a similar stage of construction on or after the 1st January 2019; 2.1.2 which are in commercial use for sport or pleasure; and, 2.1.3 carry no cargo and no more than 12 passengers.

2.2 Please note that these application criteria include sail training vessels.

2.3 The standards within the REG Yacht Code aim to achieve equivalence with those laid down under the relevant International Conventions^[footnote 2] adopted by the International Maritime Organization (IMO), and as such have been informed to the IMO as an equivalence.

3. Underpinning Legislation

3.1 For the purposes of applicable yachts registered to the UK, Part A of the REG Yacht Code is underpinned and given legal force by the Merchant Shipping (Vessels in Commercial Use for Sport or Pleasure) Regulations 1998 - S.I. 1998/2771, with effect from the 1 January 2019.

3.2 The REG Yacht Code Part A is deemed a document amending the Code of Practice for Safety of Large Commercial Sailing and Motor Vessels, and as such supersedes that Code and its revisions LY2 and LY3.

3.3 The Red Ensign Group deems this Code as equivalent to the requirements of the relevant International Conventions.

4. Existing Vessels

4.1 For legal reasons, the previous Codes and Standards are incorporated into this MSN by reference, but this is only so that the saving and transitional provisions can work properly. New vessels cannot use these previous Codes and Standards, and existing vessels can only use them to the extent spelt out in paragraph 1.6(2) of the REG Code, Part A, and in any case must comply with the requirements in the Codes for existing vessels.

4.2 The Saving and Transitional provisions for existing vessels are set out in the Annex to this MSN, at Appendix 2.

5. Further Information

5.1 The REG Yacht Code, Part A, is provided via a link, at the Annex to this MSN.

More Information

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Annex to MSN 1895

**A CODE OF PRACTICE FOR SAFETY OF LARGE COMMERCIAL
SAILING AND MOTOR VESSELS**

(Published pursuant to Regulations 2(2) and 4 of SI 1998/2771 -The Merchant Shipping (Vessels in Commercial Use for Sport or Pleasure) Regulations 1998)

1. This Code of Practice supersedes and replaces all previous editions.
2. Appendix 1 contains the REG Code, subject to the amendments specified there. Appendix 2 contains transitional and saving provisions for existing vessels.
3. All vessels other than existing vessels (as defined in Appendix 2) shall comply with Appendix I.
4. Existing vessels may comply with:-
 - a. Appendix 1, the REG Code; or,
 - b. Appendix 2, the Saving and Transitional Provisions.
5. Vessels seeking to comply with the requirements of an Appendix must comply in full, and cannot comply with part of one and part of another.

Appendix 1

THE RED ENSIGN GROUP YACHT CODE, PART A (“REG Code”)

1. All vessels subject to this Annex shall comply with the REG Code, but subject to the following clarifications and amendments.
2. In the REG Code:
 - a. Where the Code refers to “administration”, that should be taken to mean the UK Maritime and Coastguard Agency (MCA);
 - b. Where the Code refers to a ‘ship registered in an REG state’, read ‘ship registered in the United Kingdom’
 - c. “pleasure vessel” should be taken to mean:
 - (a) any vessel which at the time it is being used is—
 - (i) in the case of a vessel wholly owned by—
 - (aa) an individual or individuals, used only for the sport or pleasure of the owner or the immediate family or friends of the owner; or
 - (bb) a body corporate, used only for sport or pleasure and on which the persons on board are employees or officers of the body corporate, or their

immediate family or friends; and

(ii) on a voyage or excursion which is one for which the owner does not receive money for or in connection with operating the vessel or carrying any person, other than as a contribution to the direct expenses of the operation of the vessel incurred during the voyage or excursion; or

(b) any vessel wholly owned by or on behalf of a members' club formed for the purpose of sport or pleasure which, at the time it is being used, is used only for the sport or pleasure of members of that club or their immediate family, and for the use of which any charges levied are paid into club funds and applied for the general use of the club,

where, in the case of any vessel referred to in paragraph (a) or (b), no other payments are made by or on behalf of users of the vessel, other than by the owner; and in this definition "immediate family" means, in relation to an individual, the spouse or civil partner of the individual, and a relative of the individual or the individual's spouse or civil partner; and "relative" means brother, sister, ancestor or lineal descendant.

3. The REG Code may be viewed and downloaded via the following link:-

[reg-yc-january-2019-edition-part-a-including-corrigenda-no12.pdf](https://www.redesigngroup.org/media/1472/reg-yc-january-2019-edition-part-a-including-corrigenda-no12.pdf)
(<https://www.redesigngroup.org/media/1472/reg-yc-january-2019-edition-part-a-including-corrigenda-no12.pdf>)

[reg-yc-july-2024-edition-part-a.pdf](https://www.redesigngroup.org/media/yzlbtkeyi/reg-yc-july-2024-edition-part-a.pdf)
(<https://www.redesigngroup.org/media/yzlbtkeyi/reg-yc-july-2024-edition-part-a.pdf>)

Appendix 2

Saving and Transitional Provisions for Existing Vessels

1. This Annex allows existing vessels to be exempted from the requirements in the REG Code, Part A, as long as they meet the requirements set out in this Annex.

1.1 An existing vessel is one whose keel was laid, or which was at a similar stage of construction, before 1 January 2019.

2. Existing yachts that otherwise meet the application criteria set out in paragraph 1.1 above, but were surveyed and certificated under:-

2.1 the Code of Practice for Safety of Large Commercial Sailing and Motor Vessels;
2.2 LY2; or,
2.3 LY3.

need to comply with the requirements set out in paragraph 1.6 (2) of the REG Yacht Code, Part A but may otherwise continue operating in compliance with those previous standards.

3. To the extent necessary for the operation of this Annex, the standards within the previous Codes, listed at 2 above, are incorporated into this MSN. (For the avoidance of doubt, please note those standards are no longer available, after 1 January 2019, for new vessels as defined at paragraph 2.1 in the main text of this MSN.)

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1. Crown Dependencies (Isle of Man, Guernsey and Jersey) and the UK Overseas Territories (Anguilla, Bermuda, British Virgin Islands, Cayman Islands, Falkland Islands, Gibraltar, Montserrat, St Helena and the Turks & Caicos Islands).
 2. Article 8 of the International Convention on Load Lines, 1966; Regulation I-5 of the International Convention on Safety of Life at Sea; and, Article 9 of the International Convention on Standards of Training Certification and Watchkeeping for Seafarers 1978 as amended. Notification of equivalences can be found on the IMO website at <https://gisis.imo.org> (<https://gisis.imo.org>).



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